



Reference is made to Supplier Relationship Agreement # CW3125224 (SRA / Master Services Agreement) and Statement of Work # CW3139355 (SOW). This Participation Attachment (PA) is entered into by and between IBM New Zealand Limited (IBM or Buyer) and CBRE Limited (Supplier). This PA adopts and incorporates by reference all of the terms and conditions of the SRA, any Attachments thereto in effect as of the date of this PA (exclusive of any Participation Attachments), and the SOW (hereinafter the “Existing Agreement”). Capitalized terms used herein and not otherwise defined have the meanings set forth in Existing Agreement.

Using this PA, IBM may order Deliverables and Services available from Supplier in accordance with, and subject to, the terms and conditions of this PA and the Existing Agreement. This PA and the Existing Agreement are the complete agreement regarding transactions hereunder.

This PA does not adopt or incorporate any future amendments or **Attachments** to the Existing Agreement unless agreed to in writing by the parties to this PA.

The following terms and conditions apply to transactions performed entirely within New Zealand only or when IBM is located in New Zealand and amend the other provisions of this agreement to bring the conduct of the parties' transactions into conformity with local law and practice.

1.1. *Term and Termination*

Notwithstanding the Section titled “Term and Termination,” either party may terminate this Agreement, without any cancellation charge, if any of the following events occurs in respect of the other party or the terminating party has reasonable grounds to believe that one is likely to occur, namely that the other party: (i) has a meeting convened for the passing of a resolution for its winding up; (ii) enters into a scheme or voluntary arrangement with its creditors; (iii) is the subject of a petition presented for the appointment of an administrator, statutory manager or liquidator; (iv) has a receiver appointed over any of its property or assets; or (v) is the subject of a petition presented for his bankruptcy. Such termination will be effective upon notice in writing to the other party, liquidator, administrator, statutory manager or receiver.

1.2. *Liability*

The categories of loss and damage specified in the Section titled “Liability” (i.e., lost revenues, lost profits, consequential, special or punitive damages) are replaced by the following categories of loss and damage: economic loss (including loss of profits, business, revenue, goodwill or anticipated savings), special, indirect or consequential loss. Additionally, each party will be liable without limit for death or personal injury resulting from the negligence of Buyer Personnel or Supplier Personnel (as the case may be).

1.3. *Choice of Forum*

The parties agree to submit to the non-exclusive jurisdiction of the New Zealand courts.

1.4. *Limitation of Action*

The following provision supersedes the limitation of action provision only specified in the Subsection titled “Governing Law” “Subject to any statute of limitations, the parties agree that any legal or other action related to a breach of this PA must be commenced no later than six (6) years from the date of the breach.”

1.6 *Notices*

Any notices required to be given under this PA shall be issued in accordance with Section 17.8 of the Master Agreement to the following recipients:

If to Buyer: [...]	If to Supplier: CBRE GWS Pte. Ltd. 2 Tanjong Katong Road #06-01 PLQ Tower 3 Paya Lebar Quarter, Singapore 437161 <u>Attn:</u> Theresa Rynard, Division President, GWS Enterprise (Theresa.Rynard@cbre.com.sg) Jacquín Hartzenberg, Commercial Finance Director, GWS Enterprise (jacquín.hartzenberg@cbre.com) With copy at the same time to: Daniel Kim, Head of Legal, GWS APAC (daniel.kim1@cbre.com) and (notices.apac.ent@cbre.com)
----------------------------------	--



In the event of any conflict in the terms of the Existing Agreement, the order of precedence will be: (i) the quantity, payment and delivery terms of the relevant WA; (ii) the relevant SOW**;; (iii) this PA; (iv) the SRA inclusive of any and all Attachments (excluding any Participation Attachments) in effect as of the date of this PA. In the event that the Existing Agreement is terminated, the terms and conditions of this Participation Attachment shall survive such termination and remain in effect for purposes of this Participation Attachment only.

ACCEPTED AND AGREED TO:
IBM NEW ZEALAND Limited
NZBN # 942 904 093 3108

By: _____

Buyer Signature

Date

Printed Name :

Thorby Walker

Title & Organization
First line Leader , ANZ
Pocurement

Buyer Address:
Level 4, 30 Gaunt Street
Auckland, 1010
New Zealand

ACCEPTED AND AGREED TO:
CBRE Limited
NZBN # 9429037805357

By: DocuSigned by: Emma Forster Mitrovski 3/22/2021
0901F0A1DB1C475...

Supplier Signature

Date

Printed Name

Emma Forster Mitrovski

Title & Organization
Senior Managing Director, GWS

Supplier Address:
Level 14, ANZ Centre, 23-29
Albert Street, Auckland 1010,
New Zealand